

An Act

ENROLLED HOUSE
BILL NO. 2988

By: Dobrinski and Ranson of the
House

and

Kern of the Senate

An Act relating to environment and natural resources; amending Section 1, Chapter 372, O.S.L. 2023 (27A O.S. Supp. 2025, Section 3-8-101), which relates to the Terry Peach North Canadian Watershed Restoration Act; renaming act to the Terry Peach Water Restoration Act; amending Section 2, Chapter 372, O.S.L. 2023 (27A O.S. Supp. 2025, Section 3-8-102), which relates to a pilot program to remove harmful woody species; amending definitions; making the pilot program a statewide program; amending Section 3, Chapter 372, O.S.L. 2023 (27A O.S. Supp. 2025, Section 3-8-103), which relates to the North Canadian Watershed Restoration Revolving Fund; renaming fund; changing purpose of fund; and providing an effective date.

SUBJECT: Environment and natural resources

BE IT ENACTED BY THE PEOPLE OF THE STATE OF OKLAHOMA:

SECTION 1. AMENDATORY Section 1, Chapter 372, O.S.L. 2023 (27A O.S. Supp. 2025, Section 3-8-101), is amended to read as follows:

Section 3-8-101. This act shall be known and may be cited as the "Terry Peach ~~North Canadian Watershed~~ Water Restoration Act".

SECTION 2. AMENDATORY Section 2, Chapter 372, O.S.L. 2023 (27A O.S. Supp. 2025, Section 3-8-102), is amended to read as follows:

Section 3-8-102. A. As used in the Terry Peach ~~North Canadian Watershed~~ Water Restoration Act:

1. "Commission" means the Oklahoma Conservation Commission;

2. "Harmful woody species" means a tree or shrub species that is rapidly encroaching into adjoining lands and is likely to cause harm to the environment or economy. Harmful woody species include, but are not limited to, Juniperus virginiana (Eastern Redcedar), Juniperus scopulorum (Rocky Mountain juniper), Juniperus monosperma (oneseed juniper) ~~and~~, Tamarix ramosissima (salt cedar), Juniperus pinchotii (Redberry juniper), Juniper ashei (ashe juniper), and Prosopis glandulosa (honey mesquite); and

3. "~~North Canadian Watershed~~" means ~~the~~ an area of land in Oklahoma that drains or sheds water into the North Canadian River a waterway or water basin.

B. There is hereby created a ~~pilot~~ statewide program to remove or eradicate harmful woody species in ~~the North Canadian Watershed watersheds~~ to be administered by the Oklahoma Conservation Commission. To accomplish the goals listed in this section, the Commission is authorized to use the funds available in the ~~North Canadian Watershed Water~~ Restoration Revolving Fund established in ~~Section 3 of this act~~ Section 3-8-103 of this title. The purpose of the program is to manage and eradicate, where possible, harmful woody species that damage grazing lands, create significant wildfire risk, reduce wildlife habitat and reduce water flow into ~~the North Canadian River~~ waterways and water basins.

C. In administering the ~~pilot~~ program, the Commission shall:

1. Cooperate with landowners, state agencies, and other political subdivisions for removal of harmful woody species;

2. Measure the density of harmful woody species and estimate water used by those species;

3. Create a study using a parallel watershed with no control of harmful woody species;

4. Utilize available funds to cost-share with landowners for expenses incurred in the eradication of harmful woody species by prescribed burn, biological controls, mechanical removal, or herbicide applications;

5. Develop grant programs with conservation districts, rural fire departments, and prescribe burn associations for resources needed for prescribed burns, mechanical removal, biological control, or herbicide applications on harmful woody species;

6. Bring attention to the problems posed by harmful woody species to create awareness, demonstrate value to all stakeholders, and encourage landowners to participate in the program; and

7. Have at least two active project areas in the program, one above the Canton Lake dam and one below.

D. The Commission is authorized to promulgate any rules and procedures to effectuate the provisions of this section.

SECTION 3. AMENDATORY Section 3, Chapter 372, O.S.L. 2023 (27A O.S. Supp. 2025, Section 3-8-103), is amended to read as follows:

Section 3-8-103. There is hereby created in the State Treasury a revolving fund for the Oklahoma Conservation Commission to be designated the "~~North Canadian Watershed~~ Water Restoration Revolving Fund". The fund shall be a continuing fund, not subject to fiscal year limitations, and shall consist of all monies received by the Conservation Commission from appropriations, federal grants or funds, municipal contributions, private contributions, and any other sources, including interest earned from the income in the fund, that are designated for deposit to such fund or designated for duties associated with harmful woody species removal from ~~the North Canadian Watershed~~ watersheds throughout the state. All monies accruing to the credit of said fund are hereby appropriated and may be budgeted and expended by the Conservation Commission to perform the duties imposed on the Commission by law. Expenditures from said fund shall be made upon warrants issued by the State Treasurer against claims filed as prescribed by law with the Director of the Office of Management and Enterprise Services for approval and payment.

SECTION 4. This act shall become effective November 1, 2026.

Passed the House of Representatives the 4th day of May, 2026.

Presiding Officer of the House
of Representatives

Passed the Senate the 23rd day of April, 2026.

Presiding Officer of the Senate

OFFICE OF THE GOVERNOR

Received by the Office of the Governor this _____
day of _____, 20_____, at _____ o'clock _____ M.
By: _____

Approved by the Governor of the State of Oklahoma this _____
day of _____, 20_____, at _____ o'clock _____ M.

Governor of the State of Oklahoma

OFFICE OF THE SECRETARY OF STATE

Received by the Office of the Secretary of State this _____
day of _____, 20_____, at _____ o'clock _____ M.
By: _____